

14. 9:00 AM CASE NUMBER: C25-01595
CASE NAME: PRODIGY MANAGEMENT, LLC VS. KHRISTIAN BUISON
***HEARING ON MOTION IN RE: APPLICATION FOR WRIT OF POSSESSION AND HEARING RE:**
KHRISTIAN JOY BUISON
FILED BY: PRODIGY MANAGEMENT, LLC
TENTATIVE RULING:

Parties to Appear

15. 9:00 AM CASE NUMBER: C25-01792
CASE NAME: MUNA RANTISI VS. KHALED ABUKESHEK
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ABUKESHEK, KHALED AHMAD
TENTATIVE RULING:

Before the Court is Defendant Khaled Ahmad Abukeshek's Demurrer to Plaintiffs' Complaint.

Defendant's unopposed Request for Judicial Notice is **GRANTED**. (Cal. Evid. Code § 452 (d).)

Defendant's demurrer is **SUSTAINED** as discussed below.

Factual Allegations and Procedural Background

This matter arises from an incident that occurred on December 2, 2022, wherein moving Defendant Khaled Ahmad Abukeshek ("Defendant") allegedly shot Khalid Haddad. Khalid Haddad suffered injuries to his head, hand, arm and leg from the gun shots. It is alleged that Khalid Haddad (Decedent) died on July 12, 2023, because of the gun shots.

Plaintiffs filed the Form Complaint in this matter on June 20, 2025. It includes three causes of action: (1) general negligence, (2) premises liability, and (3) intentional tort. Plaintiffs in this action include: (1) the Estate of Khalid Haddad; (2) Muna Rantisi, individually and as successor in interest of Khalid Haddad; (3) Victor George Haddad; (4) Razan Victor Haddad; and (5) Faisal Victor Haddad. All the individual Plaintiffs are immediate family members of the deceased: Muna Rantisi: mother; Victor George Haddad: father; Razan Victor Haddad: sister; and Faisal Victor Haddad: brother.

On November 12, 2024, Plaintiffs Estate of Khalid Haddad and Muna Rantisi, individually and as successor in interest of Khalid Haddad, filed a separate lawsuit against Moving Defendant Khaled Ahmad Abukeshek, Shaker Abukishk, and Violet Jew – all of which are Defendants in this action. That matter is also pending in Contra Costa Superior Court – case number C24-03021 (the "03021 Matter"), currently pending before Department 16. The 03021 Matter also pertains to the December 2, 2022, incident and asserts that same three causes of action. The factual allegations are essentially the same as those in the present action.

Defendant Khaled Ahmad Abukeshek demurs to the entire complaint on two grounds: (1) there is another action pending between the same parties on the same cause of action (Cal. Code Civ. Proc. § 430.10 (c)); and (2) the complaint fails to state facts sufficient to state a cause of action (Cal. Code Civ.